

Davao City Ordinance No. 0310-07

The Watershed Protection, Conservation and Management Ordinance of Davao City

=== Ordinance No. 0310-07 (2007) ===

Title: THE DAVAO CITY WATERSHED PROTECTION, CONSERVATION AND MANAGEMENT ORDINANCE (AND MAY 2015 MINING BAN ORDINANCE)

Enacting LGU: City of Davao

Enacting Clause: BE IT ORDAINED BY THE SANGGUNIANG PANLUNGSOD OF DAVAO CITY, IN SESSION ASSEMBLED, THAT:

Date Approved: May 29, 2007 (Mining Ban Resolution/Enactment May 12, 2015)

Judicial Reference: Davao City Mining Ban & Watershed Legal Controversy (City Council vs. National MPSA Concessions)

Judicial Ruling: Active Vertical Preemption Tension (National Mineral Concessions vs. Territorial Mining Ban)

Gold NLI Label: Contradiction

Superior National Law: Republic Act No. 7942 §4, §27; 1987 Constitution Art. XII §2; Republic Act No. 7160 §16, §458

--- OPERATIVE SECTIONS ---

SECTION 1. TITLE:

This Ordinance shall be known as the 'Davao City Watershed Protection, Conservation and Management Ordinance of 2007'.

SECTION 4. PROHIBITED ACTS IN WATERSHED CONSERVATION ZONES: All extractive activities, commercial logging, and industrial operations are strictly prohibited in the recharge zones of the Panigan-Tamugan watershed.

SECTION 2 (2015 MINING BAN): No mining operations of any nature (large-scale or small-scale) shall be permitted anywhere within the territorial jurisdiction of Davao City. The City Mayor shall refuse to issue business permits or Mayor's clearances to any entity holding national mineral agreements (MPSAs) from the DENR.